

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address): TELEPHONE NO.: _____ FAX NO. (Optional): _____ EMAIL ADDRESS (Optional): _____ ATTORNEY FOR (Name): _____	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF STREET ADDRESS: MAILING ADDRESS: CITY AND ZIP CODE: BRANCH NAME:	
PLAINTIFF/PETITIONER: DEFENDANT/RESPONDENT:	
EX PARTE APPLICATION FOR EXTENSION OF TIME TO SERVE PLEADING AND ☐ ORDER EXTENDING TIME TO SERVE AND ☐ ORDER CONTINUING CASE MANAGEMENT CONFERENCE	
Note: This ex parte application will be considered without a personal appearance. (See Cal. Rules of Court, rule 3.1207(2).)	HEARING DATE: DEPT.: _____ TIME: _____

1. Applicant (name):
is
 - a. ☐ plaintiff
 - b. ☐ cross-complainant
 - c. ☐ petitioner
 - d. ☐ defendant
 - e. ☐ cross-defendant
 - f. ☐ respondent
 - g. ☐ other (describe):
2. The complaint or other initial pleading in this action was filed on (date):
3. Applicant requests that the court grant an order extending time for service of the following pleading:
 - a. ☐ Complaint
 - b. ☐ Cross-complaint
 - c. ☐ Petition
 - d. ☐ Answer or other responsive pleading
 - e. ☐ Other (describe):
4. Service and filing of the pleading listed in item 3 is presently required to be completed by (date):
5. Previous applications, orders, or stipulations for an extension of time to serve and file in this action are:
 - a. ☐ None
 - b. ☐ The following (describe all, including the length of any previous extensions):
6. Applicant requests an extension of time to serve and file the pleading listed in item 3 on the following parties (name each):

CASE NAME:

CASE NUMBER:

7. The pleading has not yet been filed and served on the parties listed in item 6 for the following reasons *(describe the efforts that have been made to serve the pleading and why service has not been completed)*:

☐ Continued on Attachment 7.

8. An extension of time to serve and file the pleading should be granted for the following reasons:

☐ Continued on Attachment 8.

9. If an extension of time is granted, filing and service on the parties listed in item 6 will be completed by *(date)*:

10. Notice of this application under rules 3.1200–3.1207 ☐ has been provided as required *(describe all parties or counsel to whom notice was given; the date, time, and manner of giving notice; what the parties or counsel were told and their responses; and whether opposition is expected)* or ☐ is not required *(state reasons)*:

☐ Continued on Attachment 10.

11. Number of pages attached: _____

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Date: _____

(TYPE OR PRINT NAME OF APPLICANT OR ATTORNEY FOR APPLICANT)

 _____
(SIGNATURE OF APPLICANT OR ATTORNEY FOR APPLICANT)

Order on Application is ☐ below ☐ on a separate document.

ORDER

1. The application for an order extending time to serve and file the pleading is ☐ granted ☐ denied.
2. The pleading must be served and filed no later than *(date)*:
3. ☐ The case management conference is rescheduled to:
 - a. Date:
 - b. Time:
 - c. Place:
4. Other orders:
5. A copy of this application and order must be served on all parties or their counsel that have appeared in the case.

Date: _____

JUDICIAL OFFICER